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Case Number: 26STCV00683 Hearing Date: July 1, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 1, 2026

Case Name: 26STCV00683

Case

No.: Gordy v.

Shernoff, Bidart, Echeverria, LLP, et al.

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants Shernoff

Bidart Echeverria LLP, William Shernoff, and Travis Corby

Responding Party: Plaintiff Paul Gordy

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant Stephen

Cooper

Responding

Party: Plaintiff Paul Gordy

Tentative

Ruling: Defendants Shernoff

Bidart Echeverria LLP, William Shernoff, and Travis Corby's demurrer is overruled in its entirety.

Defendants

Shernoff Bidart Echeverria LLP, William Shernoff, and Travis Corby's motion to strike is denied in its entirety.

Defendant

Stephen Cooper's demurrer is overruled in its entirety.

Defendant

Stephen Cooper's motion to strike is denied in its entirety.

Plaintiff

filed this action against Defendants Shernoff Bidart Echeverria LLP, William Shernoff, Travis Corby, Stephen Cooper ("Cooper"), and Does 1 through 50. The First Amended Complaint ("FAC") alleges five causes of action for: (1) breach of contract; (2) professional negligence; (3) breach of fiduciary duty; (4) fraud and deceit—intentional misrepresentation; and (5) fraud and deceit—intentional misrepresentation.

Defendants Shernoff

Bidart Echeverria LLP, William Shernoff, and Travis Corby (collectively "Defendants") demur to Plaintiff's five causes of action. Defendants also move to strike portions of Plaintiff's FAC.

Cooper demurs to Plaintiff's five

causes of action. Cooper also moves to strike portions of Plaintiff's FAC.

Plaintiff opposes Defendants' and

Cooper's demurrers and motions to strike.

Legal Standard

A demurrer is an objection to a

pleading, the grounds for which are apparent from either the face of

the complaint or a matter of which the court may take judicial notice. 4 (Code

Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Request for Judicial Notice

A.

Defendants' Motions

Defendants

request that the Court take judicial notice of the following seven items: (1) items one through four are court records from Gordy v. Caremore Health Plain, Inc., in Orange County Superior Court 30-2018-01036639-CU-IC-WJC; (2) the fifth item is a demand for exchange of expert testimony; (3) nothing is attached as to request six; and (4) the seventh item is a check.

The Court

grants Defendants' request for judicial notice as to requests one through four

pursuant to Evidence Code section 452, subdivision (d). The Court takes judicial notice of the existence of these documents and not the statements therein. (Day v. Sharp (1975) 50 Cal.App.3d 904 ["a court cannot take judicial notice of hearsay allegations as being true, just because they are part of a court record or file. A court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."])

The Court

denies Defendants' request for judicial notice of requests five through seven because these items are not subject to judicial notice.

Analysis

A.

Defendants' Motions

Meet and Confer

Pursuant to Code of Civil Procedure

section 430.41, "a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . ."

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendants

contend that they sent a detailed letter to Plaintiff regarding the defects in its demurrer and motion to strike. (Robinson Decl., ¶ 3.) Defendants also contend that the parties discussed the case generally, but it is unclear whether these conversations occurred in person, by telephone, or via video conference, as required by statute. (Id. at ¶ 3.) The Court finds that the parties did not meet and confer but, in the interest of judicial efficiency, will address the merits of Defendants' demurrer and motion to strike.

Demurrer

Defendants

demur to Plaintiff's FAC as to the first through fifth causes of action as uncertain and for failure to allege sufficient facts to constitute a cause of action.

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means "ambiguous and unintelligible." (Ibid.) However, demurrers for uncertainty will not be sustained unless "the pleading is so incomprehensi[ve] that a defendant could not reasonably respond." (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

In looking

at the FAC as a whole, it is not incomprehensible to sustain the demurrer on this basis. The FAC alleges sufficient facts for Defendants to respond.

Thus, the

Court overrules the demurrer on this basis.

Failure

to Allege Sufficient Facts

First,

Second, and Third Causes of Action—Breach of Contract, Professional Negligence, and Breach of Fiduciary Duty

""""The

elements of a cause of action for professional negligence are: (1) the duty of the professional to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) breach of that duty; (3) a causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional negligence."" [Citation.]

The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages. [Citation.] (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1128, as modified on denial of reh'g (Feb. 27, 2014).)

As an

initial matter, Defendants argue that the demurrer should be sustained on this basis because, in Plaintiff's prior case, Defendants withdrew from Plaintiff's case. However, the Court cannot rely on the items for Requests for Judicial Notice; it can only take notice of their existence. Defendant's arguments relating to events that took place outside the four corners of the FAC are inapplicable for purposes of the demurrer. Defendants fail to argue that the FAC fails to allege facts supporting the elements of professional negligence and breach of fiduciary duty. Similarly, Defendants' arguments regarding the breach of contract cause of action depend on the breach of fiduciary duty cause of action.

Thus, Defendants'

demurrer as to the first, second, and third causes of action is overruled.

Fourth

Cause of Action—Fraud and Deceit Intentional Misrepresentation

““The

elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.”” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (Id. at p. 645.) “For purposes of section 340.6(a), the question is not simply whether a claim alleges misconduct that entails the violation of a professional obligation. Rather, the question is whether the claim, in order to succeed, necessarily depends on proof that an attorney violated a professional obligation as opposed to some generally applicable nonprofessional obligation.” (Lee v. Hanley (2015) 61 Cal.4th 1225, 1238 (Lee).)

Defendants

argue that Plaintiff does not meet the pleading standard and that Plaintiff conflates fraud with legal malpractice. First, the Court is not persuaded by Defendants' argument because they are requesting the Court to make definitive findings beyond the four corners of the FAC, which is more akin to a motion for summary judgment than to a demurrer. Second, Plaintiff alleges that Defendants concealed material facts from Plaintiff to induce Plaintiff to accept a \$2

million settlement. (FAC, ¶¶ 69-74.) The FAC also alleges that Defendants concealed from Plaintiff the value of the case, with the intent for Plaintiff to rely on their representation, that Plaintiff relied, and that, due to the misrepresentation, Plaintiff only recovered a fraction of the total settlement. (Ibid.) Third, while fraud claims require particularity in cases where “it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,” [citation]; “[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party....” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384, as modified on denial of reh’g (Mar. 18, 2009).) Fourth, Defendants’ reliance on Lee is misplaced because Lee relies on Code of Civil Procedure section 340.6, where the Code states that “[a]n action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year. . .” (Lee, supra, 61 Cal.4th at p. 1238; Code Civ. Proc., § 340.6 subd. (a).) The FAC alleges sufficient facts to survive demurrer.

Thus, the Court
overrules Defendants’ demurrer as to the fourth cause of action.

Fifth
Cause of Action—Fraud and Deceit Intentional Misrepresentation

As an
initial matter, Defendants do not specify the demurrer as to the fifth cause of action. However, assuming that they made a typographical error, their demurrer also fails. (See Mot., 23:22-27.) Defendants once again ask the Court to make factual findings outside of the four corners of the FAC. The FAC alleges sufficient facts to survive demurrer.

Thus, the
Court overrules Defendants’ demurrer as to the fifth cause of action.

Motion to Strike

Defendants
move to strike Plaintiff’s FAC for allegations associated with Caremore and

requests for punitive damages in paragraphs: (1) 63; (2) 75; (3) 83; (4) prayer for relief; (5) 43; (6) 48(c); (7) 54(c); (8) 54(d); and (9) 48(c).

As an initial matter, Defendants do not clearly identify what arguments are related to each section that they move to strike. The Court can address only the items it identifies as falling under each argument heading.

Punitive Damages

A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Punitive damages thus require more than the mere commission of a tort. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 (*Grieves*).) “In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Defendants

argue that all claims for punitive damages should be stricken because Plaintiff’s FAC fails to allege sufficient facts to prevail in its causes of action for breach of fiduciary duty and ask the Court to make factual findings.

Thus, the Court denies Defendants’ motion to strike punitive damages.

Lost Punitive Damages

“[W]e conclude that public policy considerations strongly militate against allowing a plaintiff to recover lost punitive damages as compensatory damages in a legal malpractice action. First, allowing recovery of lost punitive damages would defeat the very purpose behind such damages. (4a) “Punitive damages by definition are not intended to compensate the injured party, but rather to punish the tortfeasor whose wrongful action was intentional or malicious, and to deter him and others from similar extreme conduct.”” (*Ferguson v. Lieff, Cabraser, Heimann & Bernstein* (2003) 30 Cal.4th 1037, 1046.)

As

Plaintiff concedes in his opposition, Ferguson is binding authority, and Plaintiff is barred from recovering "lost punitive damages." However, Paragraphs 48 and 54 are not prayers for relief or demands for damages. Thus, Ferguson does not bar Plaintiff from making allegations to support his case.

Therefore,
Defendants' motion to strike paragraphs 43(c), 54(c), and 54(d) is denied.

Therefore,
Defendants' motion to strike is denied in its entirety.

B.
Cooper's Motions

Meet
and Confer

Pursuant to Code of Civil Procedure
section 430.41, "a demurring party is required to meet and confer in person, by
telephone, or video conference with the party that filed the pleading. . . ."
(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike
must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd.
(a).)

Cooper does
not provide the Court with a declaration that the parties met and conferred.
Thus, the parties did not fulfill their meet-and-confer obligations. In the
interest of judicial efficiency, the Court will address the merits of Cooper's
demurrer and motion to strike.

Demurrer

As an
initial matter, Cooper is asking for the Court to consider exhibits that are
outside the four corners of the FAC. Second, Cooper did not request that the
Court take judicial notice of materials of which the Court can take judicial
notice. Third, Cooper did not present any legal arguments in support of his
demurrer. Cooper only makes conclusory arguments without legal support.
Finally, the notice of Cooper's motion states that the demurrer is based on
Code of Civil Procedure section 430.10, subdivision (c). Code of Civil

Procedure 430.10, subdivision (c) states that “[t]here is another action pending between the same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).) No arguments were made that there are two ongoing causes of action.

Thus, the Court overrules Cooper's demurrer on the basis mentioned above.

Motion to Strike

Cooper moves to strike Plaintiff's first cause of action. Cooper also moves to strike paragraph 6 within the third cause of action, paragraph 75 within the fourth cause of action, and paragraph 83 within the fifth cause of action. Cooper also moves to strike items 1 and 2 of the prayer for relief.

Preliminary Matters

Cooper moves to strike portions of the FAC where it says “All Defendants,” but this is improper, and Cooper has provided no legal authority to support this proposition. Similarly, Cooper moves to strike entire causes of action, which is not procedurally proper in a motion to strike. Cooper also moves to strike Plaintiff's request for compensatory damages and does not provide any legal basis for such request.

Punitive Damages

The Court reintegrates the legal doctrine regarding punitive damages into this ruling, as set forth in Defendants' motion to strike, earlier in this ruling. Cooper makes conclusory arguments that the FAC Plaintiff fails to present facts showing that Defendants were guilty of fraud, malice, or oppression. However, Cooper does not meet his burden to prevail on his motion to strike. Moreover, the allegations pleaded in the fraud cause of action remain against Cooper.

Thus, the Court denies Cooper's motion to strike punitive damages.

Conclusion

Defendants'
demurrer is overruled in its entirety.

Defendants'
motion to strike is denied in its entirety.

Cooper's
demurrer is overruled in its entirety.

Cooper's motion
to strike is denied in its entirety.